



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing nine judgments on Tuesday 7 March 2017 and 17 judgments and / or decisions on Thursday 9 March 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 7 March 2017

[R.L. and Others v. Denmark \(application no. 52629/11\)](#)

The applicants, M (the first applicant), F (the second applicant), L, and S, are Danish nationals who were born in 1965, 1951, 2004, and 2006 respectively and live in Copenhagen. The case concerns the paternity of the second applicant in relation to L and S.

The first and second applicants married in 2001. In 2004, the first applicant gave birth to a boy, L. As the second applicant was married to the first applicant, he was registered as L's father. In 2005 the first and second applicants legally separated. However, they continued to legally cohabit until June 2006.

In October 2006 the first applicant gave birth to another boy, S. Although the second applicant no longer lived with the first applicant, and had had no sexual contact with her since 2004, he submitted a signed declaration to the State Administration for Greater Copenhagen, co-signed by the first applicant, which stated that together they would take care of and be responsible for S. Consequently, the second applicant was registered as the father of S.

Without the knowledge of the second applicant, between 2003 and 2008 the first applicant had been having a relationship with another man, E. When that relationship ended in October 2008, the first applicant told the second applicant that E was the biological father of S and probably also of L.

The applicants then submitted a formal request that both paternity cases be reopened in order to formally establish E's fatherhood of the children. The request was refused by the State Administration. The applicants then brought their request before the City Court. The reopening was opposed before the court by E. The children L and S were represented by counsel, who also opposed the reopening. The first and second applicants submitted that E's fatherhood and responsibility for the children should be recognised. E stated that he did not wish to take on the role of being the children's father.

In February 2010, the City Court in Copenhagen decided to reopen the paternity cases in relation to both children, finding that this would be in the overall interests of the children and the union of the family. E appealed to the High Court of Eastern Denmark. In November 2010 the High Court refused to reopen the paternity cases. Subsequently, the second applicant took a DNA test, which established that he was not the father of either L or S.

The first and second applicants requested leave to appeal to the Supreme Court, but this was refused in January 2011.

Relying on Article 8 (right to respect for private and family life) of the European Convention on Human Rights, the applicants complain that the evidence submitted before the domestic courts showed that E. was the biological father of L and S, and that therefore the paternity cases should have been reopened, as found by the City Court.

[Baczúr v. Hungary \(no. 8263/15\)](#)

The applicant, István Baczúr, is a Hungarian national who was born in 1958 and lives in Nagykozár (Hungary). Relying in particular on Article 1 of Protocol No. 1 (protection of property) to the European Convention, he complains of a significant decrease in the benefit he had received on account of his reduced capacity to work. Following the enactment of Act no. CXCI of 2011 on the Benefits Granted to Persons with Reduced Work Capacity, Mr Baczúr applied for disability benefit. He had previously been receiving a net sum of HUF 156,585 per month (approximately EUR 510) as a rehabilitation allowance, on account of a 50% loss of his capacity to work. Following an assessment under the new law, his state of health was rated at 46%, and from 1 July 2012 onwards he was provided with only HUF 41,850 per month (later raised to HUF 55,800 - approximately EUR 140). His attempts to challenge the decision in court failed. The new rate of payment lasted until 2014, when a further legislative amendment made Mr Baczúr entitled to a payment of HUF 159,100 per month (approximately EUR 520), retroactively applicable as of 1 January 2014.

Mr Baczúr complains that the drastic decrease in his monthly disability allowance, which had prevailed between 1 July 2012 and 31 December 2013, had amounted to an unjustified deprivation of possessions in view of the fact that his underlying medical condition had not changed.

[Stanka Mirković and Others v. Montenegro \(nos. 33781/15, 33785/15, 34369/15 and 34371/15\)](#)

The applicants, Stanka Mirković, Darinka Marjanović, Igor Mirković, and Oliver Mirković, were born in 1939, 1931, 1961, and 1963 respectively and live in Belgrade and Pljevlja (Montenegro). Stanka Mirković and Oliver Mirković are Montenegrin nationals; Darinka Marjanović and Igor Mirković are Serbian nationals. The case concerns the length of civil proceedings that they were all involved in.

In December 2004 Igor and Oliver Mirković filed a request with the Restitution and Compensation Commission, seeking compensation for land expropriated from their legal predecessor in 1946. Ms Mirković and Ms Marjanović made statements waiving their rights in respect of the property. On 28 August 2005 the Commission ruled in favour of Igor and Oliver Mirković.

However, in October 2005 the Ministry of Finance quashed that decision upon an appeal filed by the Supreme State Prosecutor. In April 2006 the Commission issued a new decision, awarding compensation to all of the applicants on the grounds that they were all heirs of the legal predecessor. In so doing, it examined the waiver statements of Ms Mirković and Ms Marjanović made in 2005, but considered that they were not valid.

Between June 2006 and March 2014 the competent second-instance administrative body (firstly the Ministry of Finance and later the Appeals Commission) and the Administrative Court, before which the case was first brought in 2006, issued sixteen decisions on the matter in total (eight decisions each). The Administrative Court never ruled on the merits of the initial compensation request, but instead quashed or upheld the quashing of the first-instance decision of the Commission. Its last decision was issued in March 2014, in substance remitting the case once again to the Commission. The Supreme Court upheld the Administrative Court's decision in June 2014.

The applicants each lodged a constitutional appeal. In October 2014 the Constitutional Court rejected the applicants' constitutional appeals as premature, given that the Commission was still considering their compensation request. However, in December 2015 the court issued another decision, dismissing the applicants' constitutional appeals. On 31 March 2016, at a hearing before the Commission, the proceedings were adjourned at the applicants' request until this Court ruled on their applications.

Relying on Article 6 § 1 (right to a fair hearing within a reasonable time) and Article 13 (right to an effective remedy), the applicants complain of the overall length of the administrative proceedings, owing to the case being repeatedly remitted.

[Kamenov v. Russia \(no. 17570/15\)](#)

The applicant, Murat Kamenov, is a Kazakh national who was born in 1968 and lives in Zhangala, Kazakhstan. The case concerns his exclusion from Russia.

In 2000 Mr Kamenov moved from Kazakhstan to Russia, where he married a Russian citizen. The couple had two daughters, and settled in Slantseviy Rudnik in the Saratov Region. Mr Kamenov lived in Russia under regularly extended temporary residence permits. In August 2013 the Department of the Federal Migration Service granted him a three-year residence permit, which was valid until August 2016.

However, upon returning from a visit to Kazakhstan in April 2014, Mr Kamenov was denied re-entry into Russia. He was informed that he was banned from re-entering Russia until January 2030, on the basis of a report from the Federal Security Service.

Mr Kamenov lodged an appeal against the exclusion order, complaining that the measure had adversely affected his family life. The case was examined by the Saratov Regional Court. According to the court it was able to “review” the FSS report which served as the basis for the exclusion. However, neither Mr Kamenov nor his representative were allowed to see the report, and they were refused information about why the exclusion had been put in place. When asked about the basis for the ban, the FSS’s representatives replied that the reasons could not be disclosed in the interests of State security, and that the information was a state secret.

The Regional Court upheld Mr Kamenov’s exclusion, citing the threat to national security, and stating that the public interest prevailed over the private interest of Mr Kamenov. Mr Kamenov appealed to the Administrative Cases Chamber of the Supreme Court of the Russian Federation. However, in December 2014 the court upheld the decision made at first-instance.

Relying on Article 8 (right to respect for family life), Mr Kamenov complains that the exclusion order and the re-entry ban imposed on him had violated the right to respect for his family life. He also relied on Article 13 (right to an effective remedy) to complain that the judicial review proceedings did not afford him the opportunity to refute the accusations against him.

[Polyakova and Others v. Russia \(nos. 35090/09, 35845/11, 45694/13 and 59747/14\)](#)

The applicants are either prisoners, or the family members of prisoners, who were adversely affected by decisions of the Russian Federal Penal Authority (“the FSIN”) to imprison individuals far away from their families.

The applicant Elvira Polyakova is the partner of Mr R.. The couple set up home in Vladivostok, and had a child together. However, since September 2008 Mr R. has been imprisoned in the Krasnoyarsk Region, 5,000 kilometres from Vladivostok. Ms Polyakova and her son have been able to visit him on three occasions.

The applicants Natalya Kibalo, Linda Kibalo and Iman Kibalo are the wife and two daughters (respectively) of Mr Kh. They live in the village of Dubovskaya in the Chechen Republic. Since February 2008 Mr Kh. has been imprisoned in the town of Blagoveshchensk in the Amur Region, 8,000 kilometres away from the family’s home. Natalya visited her husband on eight occasions between 2008 and 2012, but could not afford to travel in 2013 or 2014. Linda has made one visit, whilst Iman (who was born during Kh.’s detention) has never seen her father.

Since September 2009 the applicant Ivan Yeliashvili has been imprisoned in the Yamalo-Nenetskiy Region, about 3,300 kilometres from the home of his father, brother, sister and nephew in Noginsk, the Moscow Region. His relatives have never been able to afford to visit him.

The applicant Vladimir Palilov is from the Yaroslavl Region. Since February 2007 he has been imprisoned 2,000 kilometres away in the Yamalo-Nenetskiy Region. His elderly mother and sister could not afford to visit him there. The mother died in 2013.

All of the applicants (except Linda and Iman Kibalo) submitted requests to the FSIN, asking for the relevant locations of imprisonment to be changed in order to allow family contact. All of the requests were refused. The applicants challenged the refusals in court. All of the claims were rejected, both at first instance and on appeal. In the courts' reasoning the applicants' complaints about the distance between a prisoner's penal facility and their family members were held to be irrelevant to the applicable provisions of the Russian Code on the Execution of Sentences.

Relying on Article 8 (right to respect for private and family life), the applicants complain that the decisions to allocate prisoners to remote penal facilities – and their subsequent inability to obtain transfers – violated their rights to respect for family life. Mr Palilov also complains under Article 6 § 1 (right to a fair trial) that the Russian courts examined his case in his absence, both at first instance and on appeal.

[V.K. v. Russia \(no. 68059/13\)](#)

The applicant, V.K., is a Russian national who was born in 2001 and lives in St Petersburg (Russia). The case concerns his alleged mistreatment by teachers at his public nursery school when he was four years old. He claims that he was psychologically traumatised by the ill-treatment and developed a neurological disorder.

In the spring of 2005 V.K.'s parents noticed that he had become nervous and unwilling to go to the nursery school he had started attending the previous year.

On 7 November 2005, when picking him up from school, his mother remarked that her son's eyes were twitching and that he had a bruise on his left temple. A teacher, Ms P., told her that one of the school children had an eye infection and, to prevent it spreading, all the children had been given antibiotic eye drops. Soon after V.K. developed eye and mouth tics and was examined by both an ophthalmologist, who found no eye infection, and a neurologist, who diagnosed hyperkinesia (a state of excessive restlessness affecting the ability to control motor movement and which is mainly psychological in nature).

Shortly after this incident, V.K.'s parents complained to various local authorities, including the police. On 16 November 2005 V.K.'s mother notably complained to the local department of education that her son had been administered eye treatment using physical force and without parental consent. As a result, he had developed nervous tics. She therefore asked that her son be transferred to another nursery. The department replied that her complaints had been confirmed in part, that the nursery's director as well as two of the teachers had been disciplined and that V.K. was to be transferred to another nursery.

On learning that he would not have to return to the nursery, V.K. told his parents that he had been mistreated by two teachers, Ms P. and Ms K.. He claimed in particular that: on several occasions he had been locked in the dark in the toilets and told that he would be eaten by rats and had been forced to stand in the nursery lobby in his underwear with his arms up for prolonged periods; and, on one occasion, had had his mouth sellotaped. He had also been told that, if he complained to his parents, he would be punished further.

V.K. repeated the same account of his alleged mistreatment when questioned during the ensuing pre-investigation inquiry and criminal investigation. The authorities also questioned a number of witnesses during these proceedings, including: the suspects and the medical nurse who denied any mistreatment; directors – past and present – of the nursery who stated that they had never had any complaints about Ms P. or Ms. K.; the parents of children who attended the school, most of whom stated that their children had never complained of being mistreated; and, an assistant teacher as well as some parents who confirmed the incident with the eye drops and described some of the punishments used by the teachers against certain school children, including V.K..

The pre-investigation inquiry was opened on 27 October 2006 following a complaint lodged by V.K.'s parents. Over the following two years and three months the prosecuting authorities issued eight decisions refusing to open a criminal investigation. All these decisions were quashed because they were considered to be incomplete.

The police department eventually decided to open a criminal investigation on 19 January 2009. Aside from recording the various witness statements (mentioned above), the investigators also collected other evidence from experts in psychiatry and psychology. In particular, in January 2011 a panel of experts examined V.K. and analysed his medical records. They concluded that V.K. had not suffered from any psychiatric disorder before November 2005 and that he had been subjected to a prolonged, psychologically traumatic experience at the nursery from September to November 2005 that had resulted in a persistent neurological disorder. On the basis of that evidence, the authorities found it established that the teachers had subjected V.K. to violent acts causing physical pain and cruel treatment. Ultimately, however, the investigation was discontinued in July 2009 because the prosecution of the teachers under Articles 116 and 156 of the Criminal Code (battery or other violent acts causing physical pain and cruel treatment of minors) had become time-barred.

In the meantime, the authorities had also attempted to prosecute the teachers under Article 112 of the Criminal Code (premeditated infliction of medium severity damage to health). An essential element of that offence was, however, the intent to cause damage to health and, as the prosecuting authorities had been unable to prove such intent, this investigation was eventually discontinued in November 2014 for lack of evidence.

The decisions to discontinue the investigation were also based on expert advice in April 2009 and January 2011 that, given V.K.'s young age at the time of the alleged mistreatment and the time that had elapsed since, his statements could no longer be considered reliable.

V.K.'s mother lodged numerous complaints with various authorities about delays in the investigation, being denied access to the case file and the authorities' repeated failure to notify her of important procedural decisions. Most recently, in March 2014, the police department replied that the investigation had been thorough and that there was no need for any further investigative measures.

V.K. continues to suffer from nervous tics, has sleeping difficulties, nervousness and fears. He is regularly examined by a neurologist and follows treatment for a neurological disorder.

Relying on Article 3 (prohibition of torture and of inhuman or degrading treatment) and Article 13 (right to an effective remedy), V.K. alleges that he was ill-treated by his teachers at a public nursery school and that the ensuing investigation into his allegations was ineffective.

[Cerovšek and Božičnik v. Slovenia \(nos. 68939/12 and 68949/12\)](#)

The applicants, Silvo Cerovšek and Štefan Božičnik, are Slovenian nationals who were born in 1962 and 1946 respectively and live in Bizeljsko and Artiče (Slovenia). The case concerns the fairness of their criminal convictions for theft.

The applicants were both charged with separate instances of theft by cutting down and taking trees from a forest belonging to another person, and appropriating the wood. They were both tried by a professional judge, A.K., sitting as a single judge. The judge found both Mr Cerovšek and Mr Božičnik guilty in oral verdicts delivered in June and July 2007. The applicants were ordered to pay the victims compensation, and sentenced to six and seven months' imprisonment, respectively, which in both cases was suspended for three years.

Both applicants gave notice of their intention to appeal. This gave rise to an obligation on the part of Judge A.K. to draw up written grounds for her verdicts. However, the judge then retired. In 2010 two different judges delivered written grounds for A.K.'s original verdicts, setting out the reasons for the defendants' conviction and sentence.

The applicants appealed against the judgments, complaining that the fairness of the proceedings had been undermined by the fact that the grounds for their convictions had been provided by judges who had not participated in the trial and had not convicted them. However, the appeals were both dismissed by the Ljubljana Higher Court – as were further applications for the protection of legality made by the applicants to the Supreme Court. The applicants made constitutional complaints about the judgments to the Constitutional Court, but the court refused to admit these on 3 April 2012.

Relying on Article 6 § 1 (right to a fair trial), the applicants complain that their right to a fair trial was violated because the reasons for the convictions were given by judges who had not reached the verdict and had not participated in the trial.

[Döner and Others v. Turkey \(no. 29994/02\)](#)

The applicants are 20 Turkish nationals born between 1953 and 1983. At the time of the events giving rise to the present application, the applicants lived in Istanbul and their children attended different public elementary schools. The case concerns the criminal proceedings brought against them for aiding and abetting the PKK (Workers' Party of Kurdistan), after the applicants had submitted petitions requesting that their children be taught in Kurdish.

In December 2001, all but one of the applicants submitted petitions to the Bağcılar, Esenler and Kadıköy Education Directorates with a request for their children to be provided with education in Kurdish. It appears that similar petitions were submitted by other parents of Kurdish origin at the time.

Early on the morning of 13 January 2002 police officers from the Anti-terrorism branch of the Istanbul Security Directorate carried out a simultaneous search of the properties of 40 people, including the applicants, on the grounds that the petitions they had submitted had been made on the instructions of the PKK. No illegal material was found in the applicants' homes, but they were all arrested and taken into police custody. When questioned, two of the applicants denied sending the petition. The remaining applicants admitted sending the petition but denied any affiliation with the PKK, stating that their motive had been the desire for their children to be taught in Kurdish.

On 17 January 2002 all the applicants were released, after a hearing before a judge at the Istanbul State Security Court. The public prosecutor filed an objection about the decision. On the following day the Istanbul State Security Court upheld the public prosecutor's objection in respect of seven of the applicants, and ordered their arrest. Three of the applicants were arrested on 19 January, and held in custody until a court ordered their release on 12 February 2002.

In the meantime, the public prosecutor issued an indictment against 38 suspects, including all but one of the applicants, accusing them of aiding and abetting an armed organisation. The accused were said to have assisted the PKK by participating in its strategy of carrying out non-violent acts of civil disobedience, aimed at leaving the State in a difficult position in the international arena.

In May 2003 the Istanbul Security Court acquitted all of the accused, because on the facts none of the elements of the crime had been present in their actions and there was no other evidence to support the allegations brought against them.

The applicants complain under Article 5 §§ 2, 3 and 4 (right to liberty) that the authorities failed to inform them of the reasons for their arrest, that they were not brought promptly before a judge, and that there were not any effective remedies to challenge the lawfulness of their arrest and detention. They also complain under Article 5 § 5 that they had no right to compensation under domestic law in respect of those complaints. Relying on Article 6 (right to a fair trial), the applicants complain that the proceedings brought against them were unfair. They also maintain under Article 7 (no punishment without law) that they were subjected to criminal proceedings for using their constitutional right to file a petition, despite the absence of any provisions in domestic law criminalising such conduct. The applicants complain that the authorities' attitude towards Kurdish

people's right to education in their mother tongue amounted to a violation of Article 14 (prohibition of discrimination). Lastly, the applicants raise additional complaints under Articles 8 (right to respect for private and family life) and 13 (right to an effective remedy).

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Vinogradov v. Russia (no. 27122/10)

Thursday 9 March 2017

Athanasios Makris v. Greece (no. 55135/10)

The applicant, Athanasios Makris, is a Greek national who was born in 1946 and lives on the Island of Salamina (Greece). Mr Makris was the mayor of Salamina for 12 years and, at the relevant time, he was a town councillor and leader of the opposition party "Unity".

The case concerns Mr Makris' criminal conviction for malicious accusations on account of his having distributed, during a town council meeting, a text criticising the outgoing mayor in connection with a public procurement contract.

In January 2007 Mr Makris distributed a document to town councillors criticising the outgoing mayor (V.A.) in connection with his handling of a public procurement contract; his criticisms were later published in the press.

In December 2008, in proceedings brought by V.A. as a civil party, the Piraeus Criminal Court found Mr Makris guilty of defamation, sentencing him to a suspended term of one year for having reported untrue allegations which impugned the honour and reputation of V.A. The judgment was upheld by the Piraeus Court of Appeal, which reduced the prison sentence to six months suspended. Under Article 10 of the Convention, Mr Makris appealed on points of law, but his appeal was dismissed in July 2010.

Relying on Article 10 (freedom of expression), Mr Makris complains about his defamation conviction.

Pihl v. Sweden (no. 74742/14)

The applicant, Rolf Anders Daniel Pihl, is a Swedish national who was born in 1986 and lives in Linköping, Sweden. The case concerns a defamatory comment about him, which was posted on a blog.

On 29 September 2011, a blog run by a small non-profit association published a post, accusing Mr Pihl of being involved in a Nazi party. An anonymous person posted a comment stating, "that guy pihl is also a real hash-junkie according to several people I have spoken to". Nine days later and following a complaint by Mr Pihl, the association removed the blog post and comment, and published an apology.

Mr Pihl sued the association, claiming symbolic damages of one Swedish krona for defamation. He claimed that the association was responsible for both the post and the comment – in regard to the latter, because the association had failed to remove it immediately. The Linköping District Court dismissed the claim relating to the blog post, finding that it was covered by freedom of expression legislation which fell under the competence of the Stockholm District Court. After examining the claim in relation to the anonymous comment, the court rejected it. Though the court accepted that the comment had been defamatory, it found no legal grounds on which to hold the association

responsible for failing to remove it sooner than it had done. The Court of Appeal upheld the District Court's judgment in full, and the Supreme Court refused to grant Mr Pihl leave to appeal.

Mr Pihl lodged a further application with the Chancellor of Justice, claiming that the State had failed in its obligations under Article 8 to hold the association responsible for the defamatory comment against him. The application was rejected in July 2015.

Relying on Article 8 (right to respect for private and family life), Mr Pihl complains that the fact that Swedish law prevented him from holding the association responsible for the defamatory comment had violated his right to respect for his private life.

[Kuzmenko v. Ukraine \(no. 49526/07\)](#)

The applicant, Anatoliy Kuzmenko, is a Ukrainian national who was born in 1974 and lives in Chernigiv (Ukraine). The case concerns the search of his flat by police.

In 2007 the Desnyanskiy District Court in Chernigiv issued a warrant to search Mr Kuzmenko's flat for a mobile telephone, which had been reported stolen. The police searched the flat in Mr Kuzmenko's presence, and seized three mobile telephones. According to Mr Kuzmenko the phones belonged to him and his family members, and the authorities eventually returned them to him. He maintains that neither he nor any of his family members were ever indicted or involved in any other way in the criminal proceedings giving rise to the search warrant.

Mr Kuzmenko lodged an administrative complaint with the District Court, alleging that his home had been searched arbitrarily and seeking moral damages for a breach to the inviolability of his home. However, the District Court refused to examine the case, explaining that under the Code of Criminal Procedure of Ukraine then in force, complaints concerning actions by law-enforcement authorities taken in connection with a criminal investigation had to be lodged within the relevant criminal proceedings.

Mr Kuzmenko appealed the decision. He argued that he had no status in any criminal proceedings and had not been informed about their progress. He had therefore had no meaningful opportunity to obtain redress on the basis of the criminal code, since a criminal court could only examine complaints concerning the actions of investigation authorities in the context of its examination of a criminal case. However, the Kyiv Administrative Court of Appeal rejected the appeal. Mr Kuzmenko submitted a further appeal in cassation, but this was rejected by the Higher Administrative Court of Ukraine in May 2009.

Relying on Article 6 § 1 (access to court), Mr Kuzmenko complains that he had no access to a court for the purpose of determining his claim concerning the alleged unlawfulness of the search of his flat. He also relies on Article 8 (right to respect for private and family life, the home and correspondence) and Article 13 (right to an effective remedy) to complain that the search of his flat was arbitrary and that he had no effective remedies in relation to it.

[K2 v. the United Kingdom \(no. 42387/13\)](#)

The applicant, K2, is a Sudanese national who was born in 1982. He currently resides in Sudan. The case concerns the UK Government's decision to deprive K2 of citizenship, and exclude him from the country.

K2 was born in Sudan. He arrived in the UK as a child and became a naturalised UK citizen in 2000.

In 2009 K2 was arrested and charged with a public order offence, but, before he was required to surrender his bail, he left the UK.

There is a dispute whether from the UK he went directly to Sudan or whether he first travelled with two extremist associates to Somalia, where he engaged in terrorism-related activities linked to Al-Shabaab.

On 14 June 2010, the Secretary of State for the Home Office, having notified him of her intention to do so, made an order depriving him of his UK citizenship. On the same day, the Home Secretary notified K2 of her decision to exclude him from the UK, on account of his terrorism-related activities and his links to extremists. It is common ground that at this time he was in Sudan.

K2 brought two sets of proceedings to challenge these decisions: a judicial review of the decision to exclude him and an appeal against the decision to deprive him of citizenship.

In the judicial review proceedings, K2 primarily complained that his exclusion from the UK had undermined his ability to challenge the deprivation of his citizenship in court. However, the High Court dismissed the claim in July 2011. The Court of Appeal upheld the judgment on appeal, and the Supreme Court refused further permission to appeal in February 2013.

The citizenship issue came before the Special Immigration Appeals Commission ("SIAC"). Though some of the case against K2 had been kept secret for security reasons, his special advocate had had access to this information, and the nature of the case was broadly known to K2. K2 claimed that he could rebut the allegations of terrorism-related activities, but maintained that he was unable to do so whilst he remained in Sudan. He asserted that he feared that his communications were subject to surveillance by the Sudanese authorities and that communicating about his case would expose him to a risk of harm from them.

SIAC rejected this argument in December 2014. It held that there were at least three viable means of communication between K2, his lawyers, and SIAC ("discreet" communications with lawyers in Sudan; internet-based communications such as email or skype; and through visiting friends or relatives). There was therefore no good reason why K2 could not instruct his lawyers and engage with the case. One year later, SIAC gave judgment on the substantive part of the appeal. It found that there was "conclusive" evidence that K2 had established associations with known extremists and that he had travelled to Somalia in the company of extremists to engage in terrorism-related activities. Furthermore, the court found it highly probable that the terrorism-related activities were, at least in part, directly involved with Al-Shabaab. The court concluded that the Home Secretary had been fully justified in deciding to deprive K2 of his British citizenship and dismissed the appeal. The Court of Appeal refused K2's application for permission to appeal the judgment in July 2016.

K2 complains that the decisions to deprive him of his British citizenship and exclude him from the UK violated his rights under Article 8 (right to respect for private and family life). He further complains under Article 14 (prohibition of discrimination) read together with Article 8 that he had been treated differently from British citizens considered a threat to national security who did not hold a second nationality; and from non-national residents who enjoyed a suspensory appeal against the revocation of leave to remain in the United Kingdom.

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Minneker and Enggrand v. Belgium (no. 45870/12)
Afanasyev and Others v. Russia (nos. 50961/08, 52285/08, 52289/08 and 23761/09)
Kirionchik v. Russia (no. 30636/11)
Kulinich v. Russia (no. 19556/09)
Maksimovich v. Russia (no. 36710/08)
Nazarov v. Russia (no. 39718/07)
Petrov v. Russia (no. 31147/08)
Samun v. Russia (no. 11538/05)
Yegorova v. Russia (no. 39492/09)

Bonal v. Switzerland (no. 45158/14)
Krajinjac v. Switzerland (no. 7164/10)
Çakıcı v. Turkey (no. 4517/15)
D.Ç. v. Turkey (no. 10684/13)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.